**IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS**
**COUNTY DEPARTMENT, DOMESTIC RELATIONS DIVISION**

IN RE: ○ Marriage ○ Civil Union ○ Legal Separation ○ Allocation of Parental Responsibilities
○ Visitation (Non-Parent) ○ Support ○ Parentage of:

| | |
|---|---|
| _____ Petitioner | Case No. _____ |
| and | Calendar: _____ |
| _____ Respondent | |

## ORDER ON RULE TO SHOW CAUSE (CHILD SUPPORT)

This matter coming before the Court on a verified petition for Rule to Show Cause

why _____ ○ Petitioner ○ Respondent (hereinafter referred to as "alleged contemnor") should not be held in indirect civil contempt of Court for willful failure to obey a Court order for child support and/or any other child related expenses, and the Petitioner appearing ○ in person ○ through counsel, and Respondent ○ appearing in person ○ appearing through counsel ○ not appearing.

THE COURT FINDS a prima facie case of indirect civil contempt has been shown by ○ verified petition ○ sworn testimony.

IT IS HEREBY ORDERED THAT:

1. A Rule will issue against alleged contemnor to show cause why s/he should not be held in indirect civil contempt of Court for failure to pay child support and/or any other child related expenses as ordered by the Court on _____
2. Alleged contemnor is ordered to appear at: _____ (court address)

   Courtroom _____, on _____ at _____ ○ AM ○ PM to respond to the Rule, said Rule being returnable on that date.
3. The parties are hereby put on notice that alleged contemnor's ability to pay child support and/or any other child related expenses as ordered will be a critical issue at any hearing on the return of the Rule.
4. Alleged contemnor is ordered to bring copies of his/her completed Cook County Rule 13.3 Financial Disclosure Statement to any and all hearing/s on the return of the Rule. Choose one of the following:
   - ○ Alleged contemnor has completed a Cook County Rule 13.3 Financial Disclosure Statement.
   - ○ The opposing party shall tender a blank Cook County Rule 13.3 Financial Disclosure Statement to to alleged contemnor within _____ days of this order and alleged contemnor shall complete it within _____ days of receipt.
   - ○ Alleged contemnor has been tendered a blank Cook County Rule 13.3 Financial Disclosure Statement in open court and shall complete it within _____ days.

5. Service of this Order and the petition shall be by:

☐ Regular, First Class Mail ☐ Certified Mail ☐ Personal Service by Sheriff
☐ Personal Service by Special Process Server AND/OR ☐ Personally, in open Court.

**NOTICE**

FAILURE TO APPEAR AS ORDERED BY THE COURT MAY RESULT IN A FINDING OF CONTEMPT AND/OR COURT ORDER FOR A BODY ATTACHMENT WHICH WILL RESULT IN YOUR ARREST BY THE SHERIFF.

ENTERED:

Dated: _____

_____ _____
Judge Judge's No.

○ Atty. No.: _____
○ Pro Se 99500

Name: _____
Atty. for (if applicable):

_____

Address: _____

City: _____

State: ____ Zip: _____

Telephone: _____

Primary Email: _____

## IMPORTANT NOTICE REGARDING CONTEMPT

Civil contempt proceedings have been filed against you for not paying your child support and/or child related expenses. **Your ability to pay your child support and/or child related expenses is a critical issue in determining whether you will be held in contempt or not.**

**It is important that you provide the court with information about your financial ability to pay the child support and/or child related expenses ordered.** Your information will enable the court to accurately decide whether you are in contempt or not. If you do not provide the court with this information, you may be found in contempt and placed in jail until you pay a specific sum of money to purge your contempt. **If the court determines you are in contempt, the court then will decide what actions or sum of money you should pay to purge or remove the contempt finding.**

**During these contempt proceedings, YOU MUST:**

1. Appear for all hearings. If you fail to appear, the court has the power to issue a body attachment or warrant for your arrest.
2. Complete and bring to court a Cook County Rule 13.3 Financial Disclosure Statement.

**During these contempt proceedings, YOU HAVE THE RIGHT TO:**

1. Hire an attorney to represent you.
2. Testify about your ability to pay child support and/or child related expenses.
3. Show the court evidence about your past and current financial ability to pay child support and/or child related expenses, including but not limited to:
   - Your last 6 paycheck stubs
   - Your last 2 federal income tax returns with all schedules, exhibits, and forms attached
   - Proof of any and all income
   - Proof of any and all expenses you want the court to consider
   - Copies of any other court orders for child support for other children
   - Proof of government payments, such as:
     - ¤ Unemployment insurance benefits
     - ¤ Social security income
     - ¤ Social security disability
     - ¤ Veterans benefits
     - ¤ Food stamps
     - ¤ Any other type of payments

- If you have applied for any type of benefit, assistance, or government payment, and have not received a decision yet, bring a copy of the application.
- If you are searching for employment, bring a list of the employers that you have contacted in the last 2 months. For each employer, include the name and phone number/email of the person you contacted.